

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

MOTION TO AMEND THE VERIFIED COMPLAINT

Complainant, Cool Living LLC (“Cool Living LLC” or “Complainant”) by its undersigned attorneys, respectfully submits this Motion to Amend the Complaint (“Motion”) in the above captioned matter. Complainant submits that the Amended Complaint, attached hereto as Exhibit A (“Amended Complaint”) addresses issues raised in the affirmative defenses of ALPI U.S.A., Inc. and ALPI Air & Sea A/S (“ALPI”), clarifies the allegations and the parties, and will not prejudice ALPI.

Commission Rule 66(a) provides in relevant part that amendments “will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a).

The Commission's Rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. However, Commission Rule 12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with the opposing party's written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

Complainant respectfully seeks leave to amend the Complaint in the above-captioned matter to clarify three aspects of its pleadings: the parties in interest, its claim for additional damages, and certain minor pleadings and factual allegations, as set forth below.

First, Complainant seeks leave to amend and add Cool Living Oy as a party in this matter. While Cool Living LLC has suffered clear damage as a result of ALPI's actions alleged in the Complaint, as outlined in the Causation and Injury to Complainants section, concerns have arisen in ALPI's answer/affirmative defenses and during discovery that the proper parties in interest are not fully represented in this matter such that full relief as pled in the Complaint could be given as the Complaint is written now. To remedy this, Complainant seeks amendment to add Cool Living Oy as a co-Complainant in this proceeding, as it is more judicially efficient to resolve the relative apportionment of damages arising from the same ALPI conduct in the same proceeding. *See Bed*

Bath & Beyond Inc. v. OOCL Ltd. and OOCL (Europe) Ltd., Dkt. No. 23-02, 2024 WL 3967408, at *3 (ALJ Aug. 23, 2024) (Order on Amended Complaint, Confidentiality, and 4th Revised Scheduling Order) (weighing the judicial efficiency of considering all claims that arise from the same set of allegations in granting the motion to amend the complaint).

Second, Complainant seeks leave to amend and clarify its claim for additional damages. In error, Complainant cited to the incorrect type of damages award for proving knowing and willful violations as a private Complainant—citing to the statutory award of civil penalties available in enforcement proceedings before the Commission, instead of the proper citation to the Additional Amounts of up to double damages available for violations of Sections 41102 and 41104 of the Shipping Act. Importantly, no prejudice will result as the standard of proof for awarding both of these types of damages is “knowing and willful” violations, as was pled in the Complaint, and award of these damages is entirely in the discretion of the Presiding Officer. *See, e.g., Way Interglobal Network, LLC v. Shenzhen Unifelix Scm Ltd.*, Dkt. No. 22-28, 2024 WL 1741944, *42 (Apr. 19, 2025) (awarding double damages for Respondent’s knowing and willful violation of Section 41102(c)). The amendment simply seeks to rectify the improper citations to a civil penalties award, where civil penalties clearly are unavailable to a private party Complainant, but where double damages are the proper remedy for the same knowing and willful conduct.

Finally, Complainant seeks leave to amend the Complaint to clarify certain allegations as revealed through discovery. These amendments consist of limited revisions to the Statement of Facts to ensure consistency with the above-referenced amendments, clarifying that ALPI is unlawfully exercising liens over cargo held in Denmark and New Jersey, and clarifying that

Complainants seek a cease-and-desist order barring ALPI's wrongful withholding of the cargo and its demand for payment of amounts that were wrongfully invoiced.

Importantly, granting leave to amend will not prejudice ALPI. Discovery is still in its early stages, with the Parties having only recently exchanged their first set of written discovery responses, which may be easily amended or supplemented as necessary following amendment of the Complaint without delaying the proceeding. *Cf Bed Bath & Beyond Inc. v. OOCL Ltd. and OOCL (Europe) Ltd.*, Dkt. No. 23-02, 2024 WL 5054943, at *3 (ALJ Dec. 5, 2024) (Order Denying Complainant's Second Motion to Amend the Complaint) (in the alternative, denying leave to amend where the motion was filed after the close of discovery and the commencement of briefing). Additionally, amendment does not broaden the issues as Cool Living's causes of action and factual allegations are identical to those of Cool Living LLC. The sole issue implicated by the addition of Cool Living Oy here is the allocation of damages between the respective entities. Finally, to the extent the Presiding Officer finds that amendment broadens the issues, prejudice still does not result from amendment as ALPI retains a full opportunity to respond to the amended pleading.

Accordingly, Complainant respectfully asserts that good cause exists for amending the Complaint, that no prejudice would result therefrom, and seeks leave to file the Amended Complaint as it is reproduced in Exhibit A attached hereto.

Dated: April 30, 2026

Respectfully Submitted

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel for Respondent at the following email addresses:

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